

		As an initial note, no proof of service was filed showing service of the Motion on plaintiffs Jane Doe 1 and Jane Doe 2 ("Plaintiffs" together). As no opposition was filed, it is unclear if Plaintiffs were served with the Motion and chose not to oppose, or if there was no service. Prado moves for relief under <i>Civ. Proc. Code</i> § 473.5. While that section permits the Motion, it must be filed within the earlier of either two years from entry of default judgment against Prado, or 180 days after service of written notice of the default or default judgment being entered. Here, default judgment was entered on 12/13/22 and Prado filed the Motion on 04/29/26. As the Motion was filed over 16.5 months beyond the filing deadline, it is not timely and relief under <i>Civ. Proc. Code</i> § 473.5 cannot be granted. Even if the Motion had been timely, which again it was not under <i>Civ. Proc. Code</i> § 473.5, Prado has provided no actual evidence aside from his statement, that he was not served with the complaint or other pleadings in this action. This is not sufficient to support the Motion or for the court to grant the requested relief. Based on the above, the Motion is denied without prejudice. <i>Prado to give notice.</i>
3.	Williams v. Southern California Edison 23-1300300	The motion to reopen discovery by plaintiffs Kent Williams and Jodene Williams is DENIED, for the reasons set forth herein. The Court may re-open discovery and allow for further discovery proceedings on the motion of any party. (<i>Code Civ. Proc.</i>, § 2024.050(a).) The motion must be accompanied by a meet and confer declaration showing a reasonable attempt at reaching an informal resolution. (<i>Ibid.</i>) Initially, the meet and confer falls well short of a good faith meet and confer. The purpose of the meet and confer requirement is to encourage the parties to work out their differences informally to avoid the necessity for a formal order and in turn, lessen the burdens upon the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes. (<i>Clement v. Alegre</i> (2009) 177 Cal.App.4th 1277, 1293.) Here, plaintiffs' counsel sent an email to defense counsel requesting a stipulation to reopen. Defense counsel responded with a proposal that would have resolved half of the motion, if accepted. However, plaintiffs' counsel did not respond and instead filed the motion two days later. As to the merits of the motion, plaintiffs argue that they seek to reopen discovery to take the deposition of a former employee of defendant Southern California Edison Company (SCE) and to serve discovery requesting any <i>subrosa</i> video SCE has obtained of the plaintiffs. Plaintiffs have failed to meet their burden. "In law and motion practice, factual evidence is supplied to the court by way of

declarations.” (*Calcor Space Facility, Inc. v. Superior Ct.* (1997) 53 Cal.App.4th 216, 224) Other than describing documents in the Court’s file, authenticating a 2021 preservation letter sent to Mr. Mora., the declaration only contains the conclusory statement that good cause exists to reopen discovery because of the trial continuance. Plaintiff’s counsel also opines, without explanation, that there will be no prejudice. (See Miles Decl. ¶¶14-15) Counsel’s declaration is insufficient.

Further, the Court finds that the factors set forth in *Code Civ. Proc. § 2024.050(b)* do not support reopening discovery.

As to the deposition of Mr. Mora, plaintiffs were aware of Mr. Mora in September 2021 when they sent him the preservation letter. (Exhibit E to Miles Decl.) There is no explanation as to why they did not depose him during first two years of litigation. Further, there is no evidence as to why his testimony would be necessary to this litigation. To the extent it relates to preservation of the chain, the Joint Statement at ROA 181 addresses handling of the chain and states plaintiffs’ expert twice inspected the chain. To the extent plaintiff wants to ask about video of the incident, this matter was addressed in the deposition of Blaine Deojay, the PMQ for SCE. (Barrett Decl., Exh. A) As a result, even if plaintiffs had decided to depose Mr. Mora during the two years before discovery closed, it appears his testimony would have been of marginal value.

The next item of discovery plaintiffs seek is to ask SCE to produce any *subrosa* video depicting them which it may have obtained since discovery closed in February 2025. Plaintiff does not explain why it did not make a motion to reopen discovery to obtain *subrosa* video during the 14 months between February 2025 and the April 20, 2026 trial date. Plaintiffs have not been diligent in seeking this discovery. Further, while plaintiff claims the discovery is necessary to avoid surprise at trial, such is not the case. Presumably, Plaintiffs are the most knowledgeable about their medical condition and what activities they were, or were not, able to perform in light of their alleged injuries. Thus, they would not be “surprised” or prejudiced by being shown video footage of their own conduct on particular days.

Plaintiffs also argue that allowing them to conduct discovery as to *subrosa* video and Mr. Mora will resolve any motions to quash at trial. This is speculative and counter intuitive. Even if SCE voluntarily produced the *subrosa* video (assuming such exists) in August 2026, there would be nothing stopping SCE from obtaining further *subrosa* video thereafter. Plaintiffs would then likely serve the same notice to appear at trial with the same document demands for the May 2027 trial. It is then reasonable to assume SCE would file the same motion to quash.

While the court acknowledges the length of time that will have elapsed between the April 2026 and May 2027 trial dates, and that allowing this discovery would unlikely result in delay of the trial, the Court does

		not find these factors outweigh the lack of diligence and lack of necessity. Accordingly, the motion is DENIED. <i>SCE is ordered to give notice of this ruling.</i>
4.	The Eli Home, Inc. v. Tatarian et al. 24-1370984	Defendant/Cross-Complainant Sarkis Tatarian Trustee Under the 2021 Sarkis Tatarian Separate Property Revocable Trust's ("Sarkis") Motion to Compel Payment of Arbitration Deposits ("Motion") is GRANTED in part and DENIED in part. Sarkis requests the court issue a ruling determining proper apportionment of arbitration deposits so the parties can proceed with arbitration. Sarkis argues the deposits should be apportioned in a pro rate amount equally among the five parties participating in the arbitration, which would result in each paying 1/5 of the deposit. (<i>Civ. Proc. Code § 1284.2.</i>) The subject arbitration agreement is silent as to the division of the expenses and fees. Defendants Marcus & Millichap Real Estate Investment Services, Inc., Arash Mobin, and Adam P. Christofferson ("MMRE" together) argue the fees should be apportioned as to 1/3 the amount for MMRE, Sarkis, and Eli Home, Inc. The latter has not responded to this Motion. MMRE put forth the rules/practices of the arbitration company ADR Services, Inc. ("ADR"), which is overseeing the arbitration. ADR's "standard practice is to allocate fees by firm (or aligned party group), rather than by individual parties. . ." (Borden Dec. ¶ 3, Ex. A.) Both the first amended complaint ("FAC") and cross-complaint ("XC") indicate Mobin was the real estate agent/broker associate with Millichap as the broker and Christofferson as the broker of record on the underlying real estate transaction. (FAC ¶¶ 23-24, 39; XC ¶¶ 45, 49-50, 57.) Mobin and Christofferson are alleged as agents of Millichap and thus the liability appears to be the same. (<i>Bus. & Prof. Code §§ 10010.5 and 10032.</i>) MMRE are also represented by the same counsel. As the allegations against MMRE, liability, and counsel are the same, and as the ADR practice is division amongst the aligned groups, the court finds the 1/3 allocation to be appropriate. Although MMRE argues the Motion should be denied outright, this may lead to ongoing issues related to starting arbitration. As such, the court will issue its ruling covering the issues. The motion is GRANTED as to the court issuing a ruling regarding apportionment of the fees but DENIED as to the 1/5 allocation. The court finds the 1/3 allocation is appropriate for the initial deposits. The court also notes that this order only covers apportionment for the initial arbitration deposits to permit arbitration to proceed. The court leaves ultimate apportionment of arbitration fees and costs for the arbitrator to determine at his discretion. <i>Sarkis to give notice.</i>